

HOUSE No. 4406

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, August 28, 2025.

The committee on Higher Education, to whom was referred the petition (accompanied by bill, House, No. 1425) of Simon Cataldo, Francisco E. Paulino and Mindy Domb relative to higher education admissions; and the petition (accompanied by bill, House, No. 1452) of Michael J. Moran relative to the consideration of familial relationships to graduates in applications to higher education institutions, reports recommending that the accompanying bill (House, No. 4406) ought to pass.

For the committee,

DAVID M. ROGERS.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act banning legacy and donor preferences in higher education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of Chapter 15A of the General Laws is hereby amended by
2 adding the following paragraph:-

3 When deciding whether to grant admission to an applicant, a public institution of
4 higher education shall not consider the applicant's familial relationship to a person who attends
5 or attended the institution or such applicant's familial relationship to any donor to such
6 institution. A public institution of higher education shall not include in the documents that it uses
7 to consider an applicant for admission information that discloses the name of any college or
8 university that any relative of the applicant attended or made a donation to.

9 SECTION 2. Chapter 69 of the General Laws is hereby amended by inserting after
10 section 30A the following section:-

11 Section 30B. When deciding whether to grant admission to an applicant, a degree-
12 granting institution of higher education located in the commonwealth authorized to grant degrees
13 by the board of higher education shall not consider the applicant's familial relationship to a

person who attends or attended the institution or such applicant's familial relationship to any donor to such institution. Such institution shall not include in the documents that it uses to consider an applicant for admission information that discloses the name of any college or university that any relative of the applicant attended or made a donation to.

SECTION 3. For the purposes of this section, the following terms shall mean:

"Binding early decision admission policy", an admission policy of an institution of higher education that allows a student to apply at an earlier stage of the admissions process, receive an expedited admissions decision, and absent extenuating circumstances, requires the student to pledge to attend the institution upon receiving a decision of admittance.

"Institution of higher education", a public or private certificate- or degree-granting college, junior college or university, as authorized by the board of higher education pursuant to section 9 of chapter 15A.

The department of higher education shall review and make recommendations regarding the use of binding early decision admission policies in the commonwealth. The review shall include, but not be limited to, the number of institutions of higher education that maintain a binding early decision admission policy; the number of students who apply and are accepted under that policy; the impact of the policy on equity and diversity among enrolled students including diversity and representation among enrolled students of (i) students of various economic statuses, including students that receive a maximum federal Pell Grant, a less than maximum federal Pell Grant, and students that receive a federal subsidized Stafford Loan but not a federal Pell Grant; (ii) students of diverse racial and ethnic identities, including underrepresented and vulnerable groups, disaggregated by major racial and ethnic subgroup; and

(iii) immigrant and first-generation students. In preparing the review, the department shall consult with the Attorney General; the department of elementary and secondary education; the chairs of the Joint Committee on Higher Education; the Joint Committee on Racial Equity, Civil Rights, and Inclusion; the Advisory Council for the Advancement of Representation in Education and organizations concerned with equity and education in Massachusetts, including the Massachusetts Education Equity Partnership; the University of Massachusetts; the Massachusetts State Universities Council of Presidents; the Massachusetts Association of Community Colleges; the Association of Independent Colleges and Universities of Massachusetts; and any other stakeholders that the department identifies.

The review and recommendations shall include analysis of the overall impact of binding early decision admissions policies and make recommendations to public and private institutions of higher education concerning their admissions policies. The review may also include recommendations to the General Court for legislation. The review and recommendations shall be published on the website of the department and submitted to the chairs of the joint committee on higher education and the joint committee on racial equity, civil rights, and inclusion no later than 1 year after the effective date of this act.

SECTION 4. Sections 1 and 2 shall take effect for admission decisions that lead to an applicant's initial enrollment in a higher education institution in the 2026-2027 school year and thereafter.